

Kamla Devi vs Uttam Chand on 7 May, 2016

Author: Sandeep Sharma

Bench: Sandeep Sharma

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

Cr. Revision No.129 of 2007.

Date of Decision: 7.5.2016.

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Kamla Devi

Versus

.....Petitioner.

Uttam Chand

.....Respondent.

Coram

of

Hon'ble Mr. Justice Sandeep Sharma, Judge.

Whether approved for reporting? Yes

For the petitioner:

rt

Mr. Anand Sharma, Advocate.

For the respondent:

Mr. R.K. Sharma, Senior Advocate
with Ms. Bindya Sharma, Advocate

Sandeep Sharma, J (Oral)

Present petition filed under Section 397 (1) Cr.PC read with Section 401 is directed against the order dated 12.7.2007 rendered by Additional Sessions Judge, Fast Track Court, Kangra at Dharamshala, H.P., in Criminal Revision No. 4-3/x/06 titled Uttam Chand v. Kamla Devi, reversing the order dated 11.8.2006 rendered by learned Sub Divisional Judicial Magistrate, Jawali, District Kangra, H.P. in Criminal Application No. 90-IV/06 titled Kamla Devi v. Uttam Chand, whereby present petitioner has been held entitled to the Whether reporters of the Local papers are allowed to see the judgment? Yes.

maintenance to the tune of Rs. 1500/- per month under Section 125 Cr.PC.

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2. Perusal of the record of the learned trial Court below suggests that present petitioner had filed an application under Section 125 Cr.PC for grant of interim maintenance allowance from the respondent-herein, which of was allowed by the learned trial Court. Feeling aggrieved with the order dated 11.8.2006, respondent-herein preferred rt a criminal Revision under Section 397 Cr.PC seeking quashment of aforesaid order passed by learned Sub Divisional Judicial Magistrate, Jawali, which was allowed by the learned Additional Sessions Judge. Admittedly, present revision petition filed under Section 397 Cr.PC read with Section 401 Cr.PC is directed against the order dated 12.7.2007 passed by learned Additional Sessions Judge which has been allegedly passed invoking the powers under Section 397 Cr.PC.

3. Impugned order dated 12.7.2007 suggests that the same has been passed by learned Additional Sessions Judge while exercising revisionary powers under Section 397 Cr.PC. Mr. R.K. Sharma, Senior Advocate, appearing for the respondent, vehemently argued that the present petition .

filed under Section 397 Cr.PC is not maintainable being second revision and prayed that this petition may be dismissed on the ground of maintainability itself.

4. On the other hand, Mr. Anand Sharma, of appearing for the petitioner stated that petitioner being aggrieved with the order of learned Additional Sessions rt Judge, is competent to file revision petition under Section 397 Cr.PC against the order or judgment passed by learned Additional Sessions Judge. He further submitted that impugned order has been passed by the learned Additional Sessions Judge, Fast Track Court, Kangra at Dharamshala, HP, in criminal revision petition filed by the respondent herein, exercising its powers under Section 397 (3) Cr.PC, hence, specific bar provided under Section 397(3) will not come in the way of present petitioner as far as filing of the present petition is concerned in the facts and circumstances of the case. Admittedly, petition for maintenance allowance was filed by the present petitioner under Section 125 Cr.PC, before the learned Sub Divisional Judicial Magistrate, which was allowed and being aggrieved with the order, .

respondent Uttam Chand had actually filed criminal revision petition under Section 397 Cr.PC. It is ample clear from the facts narrated herein above that present petitioner has actually never invoked Section 397 Cr.PC, save and except of the present petition, whereby she has laid challenge to the

order passed by the learned Additional Sessions Judge, on rt the revision petition filed by the respondent. It would be apt to reproduce the provisions of Section 397, herein below:-

397 (3) If an application under this section has been made by any person either to the High Court or to the Sessions Judge, no further application by the same person shall be entertained by the other of them.

5. Careful reading of Section 397(3) makes it ample clear that no further application under Section 397 Cr.PC can be filed by the same person, meaning thereby, in the present case, respondent Uttam Chand is not competent to file second revision in terms of Section 397 (3) as he had already exhausted remedy of criminal revision under Section 397 by filing revision petition before the learned Sessions Court against the order of the learned trial Court.

6. In this regard, reliance is placed upon the judgment rendered in re Puritipati Jagga Reddy, AIR 1979 Andhra Pradesh 146 Full Bench, wherein it has been held that "bar created under Section 397 (3) is limited to the same person of who has already chosen to go either to the High Court or to the Sessions Court seeking a remedy and it does not apply to the rt other parties or persons." Relevant para of the judgment (supra) is reproduced herein below:-

9. The language of sub-sec. (3) of the S. 397 contains no ambiguity. If any person has already chosen to file a revision before the High Court or to the Sessions Court under sub-sec. (1), the same person cannot prefer a further application to the other Court. To put it in other words, Sub-secs. (1) and (3) make it clear that person, aggrieved by any other or proceeding can seek remedy by way of a revision either before the High Court or the Sessions Court.

Once he has availed himself of that remedy, he is precluded from approaching the other forum. It is equally manifest from the provisions of sub-sec. (3) that this bar is limited to the same person who has already chosen to go either to the High Court or to the Sessions Court seeking a remedy and that it does not apply to the other parties or persons. Further the bar contained in sub-sec. (3) is only against that person who has already chosen the .

remedy either before the High Court or before the Sessions Judge. It is not permissible to extend the bar contained under a statute to other persons or to other fields. It is well established that the bar against seeking a remedy in a Court of Law or against a of Court of law rendering justice should be strictly construed. It is noteworthy that sub-sec. (1) of Sec. 397 empowers the High Court or the Sessions Court rt to call for and examine the record of any proceeding before any inferior Criminal Court. That is to say, it can exercise this power of calling for and examining the record suo-motu also. The language of sub-sec. (3), strictly limited as it is to a person who has chosen to seek the remedy from one of the two courts, cannot be extended to the High Court exercising its powers conferred on it under the provision of the Code. It is patent that the bar contained in sub-sec. (3) is only against the person who has already chosen his remedy before one of the two forums.

7. Moreover, this Court has ample power to treat the present petition under Section 482 Cr.PC, which gives inherent powers to the High Court to make such orders as may be necessary to give effect to any order under this Code or to prevent the abuse of process of any Court or otherwise to secure the ends of justice. If the present petition .

is not held to be maintainable at this stage, petitioner would be rendered remediless as she will not have any opportunity to assail the order dated 12.7.2007 passed by the learned Additional Sessions Judge exercising revisionary powers of under Section 397 Cr.PC.

8. Undisputedly, powers under Section 482 Cr.PC are required to be used very sparingly, especially, in the circumstances, where court comes to the conclusion that order passed by the court below is perverse on the face of it and is a result of sheer abuse of the process of law. Keeping in view the fact that this petition has remained pending before this Court since 4th October, 2007, and same was admitted on 5th October, 2007, it would not be proper and just to dismiss the same on the ground of maintainability that too after nine years of the admission of the case.

Accordingly, in view of the aforesaid discussion, this Court is of the definite view that present petition is maintainable under Section 397 Cr.PC and bar created under Section (3) would not come in her way as far as filing of present petition is concerned. Since prior to filing of this petition, she had not .

filed any revision petition under Section 397 Cr.PC. Rather, same was filed by respondent No.3 Uttam Chand. Hence, this court is of the view that this petition cannot be held to be barred under Section 397 (3) and same is maintainable in view of the discussion made hereinabove.

9. As has been observed above that this Court has ample powers under Section 482 Cr.PC and Article 227 of the Constitution of India. In this regard, reliance is placed on the judgments of various High Courts i.e.

1. Sashidhar Naik and others v. Gadadhar Patel and Ors., 1978 CRI.L. J. 1316, Orissa High Court.
2. Bharat Sasmal v. Additional Sessions Judge, Puri and Ors. 1984 CRI.L. J. 1389, Orissa High Court.
3. Vijay Kumar Puri, V. Miss Usha Mehra and Anr., 1981 CRI. L. J. 102, Delhi High Court.
4. Kanwar Pal Bishnoi V. Addl. Sessions Judge, and Ors., 1985 (1) Crimes 221, Delhi High Court.
5. Otin Panging and Anr. v. Nambor Kaman and Ors., 1991 (1) Crimes 509, Gauhati High Court.
6. Ashok Yeshwant Samant V. Suparna Ashok Samant and Anr., 1991 CRI.L.J. 766, Bombay High Court.

7. M/s Prestolite of India Ltd. and Anr. V. The Munsif Magistrate, Hawali and Anr., 1978 CRI.L.J. 538. Allahabad High Court.

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10. Brief facts giving rise to the present case are that present petitioner by way of petition filed under Section 125 Cr.PC filed in the trial Court prayed for interim maintenance allowance against the respondent being his wife. Record of reveals that as per averments contained in the application made under Section 125 Cr.PC, petitioner claimed that her marriage with respondent was solemnized in June, 1987 according to Hindu Rites and Rituals. Respondent is working in Civil Supplies Department and remained posted at Bilaspur, Kullu, Gohar and during this period, petitioner as well as respondent stayed together in these places. It is also averred that out of the said wedlock, petitioner gave birth to three daughters and one boy aged about 17, 15, 14 and 12 years respectively. The petitioner alleged that few years back, respondent started treating the petitioner with cruelty as he used to lock her inside the house and no food/water was being provided to her and beatings were given to the petitioner. She prayed that since she had no source of

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income coupled with the fact that respondent willfully neglected her, she is entitled to maintenance in terms of .

Section 125 Cr.PC to the tune of Rs 3,000/-per month and as such direction may be issued to the respondent to provide her maintenance.

11. Respondent by way of reply refuted the claim of of the petitioner that she is his wife and contended that she is not legally wedded wife of him. He categorically stated that no marriage took place in accordance with Hindu Rites and Rituals and as such, she has no right or cause of action to file petition under Section 125 Cr.PC. Allegation of cruelty and ill treatment meted to the petitioner by respondent has been also refuted by the respondent. However, in reply, the respondent admitted that petitioner has been residing with respondent and they developed physical relations, result whereof petitioner became pregnant and four children born from the lions of the respondent. Factum with regard to the birth of four children is also acknowledged by the respondent. However, respondent stated that petitioner is not legally wedded wife of respondent, though, she is

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residing with him till date. He also submitted that all the basic necessities of petitioner are being fulfilled by him but being a .

greedy lady, she-petitioner with a intent to grab everything of the respondent has lodged the present complaint seeking maintenance allowance. Record further reveals that during the proceedings of the case pending before the court of of learned Additional Sessions Judge, present petitioner has placed on record one document dated 8.9.2002 signed by rt her as well as respondent, wherein they

themselves admitted to be husband and wife. Respondent also placed on record death certificate of one Shri Mast Ram who was admittedly husband of the petitioner. Learned trial Court after perusing the evidence brought on record by the respective parties, came into conclusion that petitioner is entitled to maintenance allowance in terms of Section 125 Cr.PC and respondent was directed to pay a sum of Rs. 1,500/- per month to the petitioner. Respondent being aggrieved with the aforesaid order of learned trial Court approached the court of learned Additional Sessions Judge. Learned Additional Sessions Judge vide order dated 12.7.2007 set

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aside the order passed by the learned Sub Divisional Judicial Magistrate. Hence this revision petition by the petitioner.

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12. Admittedly, it has come on record that both the parties have been residing together for more than 25 years and petitioner gave birth to four children who have admittedly born out of the lions of respondent. However, it of has been specifically denied by the respondent that petitioner is a legally wedded wife of him which makes her rt eligible to claim maintenance as envisaged under Section 125 Cr.PC from him. Respondent has also denied allegations of any cruelty meted out to the petitioner by him. Rather, he stated in reply that till date, petitioner has been residing with him and all basic requirements of her are being fulfilled by him only. Though, petitioner has averred that she is legally wedded wife of the respondent and their marriage had actually taken place as per Hindu Rites and Rituals but admittedly, no evidence worth the name either be it ocular or documentary has been brought on record from where it could be inferred that she was actually a legally wedded wife of the respondent.

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13. On the other hand, respondent stated that petitioner started residing with him in the year, 1987, when .

her earlier marriage was in subsistence and at that time, her husband namely Mast Ram was alive. A copy of marriage register was also produced during the pendency of revision petition wherein Mast Ram had been recorded to be her of husband. The certificate, which has been placed on record, has been admittedly issued from the Gram Panchayat Tehsil rt Karsog, District Mandi, H.P. It prima facie appears from the certificate perused from the record that petitioner was earlier got married to one Mast Ram in the year, 1983 and thereafter during the subsistence of her earlier marriage, she started residing with the respondent in the year, 1987 and gave birth to four children. Needless to say that as per law, during the subsistence of earlier marriage, any spouse cannot contract second marriage. So, at this stage, it can be safely inferred that even if the version/claim of the petitioner, which has been admitted by the respondent that she had been residing with the respondent since the year 1987, may not give her the status of legally wedded wife

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because admittedly, as per the record, petitioner was married to one Mast Ram in 1983 and he was alive till 1995.

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Now, for the better understanding of provision i.e Section 125 Cr.PC, it would be apt to reproduce the same as under:-

125. Order for maintenance of wives, children, and parents.-(1) If any person having sufficient means of neglects or refuses to maintain-

(a) his wife, unable to maintain herself, or

(b) his legitimate or illegitimate minor child, whether married or not, unable to maintain itself, or

(c) his legitimate or illegitimate child (not being a married daughter) who has attained majority, where such child is, by reason of any physical or mental abnormality or injury unable to maintain itself, or

(d) his father and mother, unable to maintain himself or herself, A Magistrate of the first class may, upon proof of such neglect or refusal, order such person to make a monthly allowance for the maintenance of his wife or such child, father or mother, at such monthly rate [***], as such Magistrate thinks fit, and to pay the same to such person as the Magistrate may from time to time direct:

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Provided that the Magistrate may order the father of a minor female child referred to in clause (b) to make such allowance, until she attains her majority, .

if the Magistrate is satisfied that the husband or such minor female child, if married, is not possessed of sufficient means.

[Provided further that the Magistrate may, during the pendency of the proceeding regarding monthly of allowance for the maintenance under this sub- section, order such person to make a monthly allowance for the interim maintenance of his wife or rt such child, father or mother and the expenses of such proceeding which the Magistrate considers reasonable, and to pay the same to such person as the Magistrate may from time to time direct:

Provided also that an application for the monthly allowance for the interim maintenance and expenses for proceeding under the second proviso shall, as far as possible, be disposed of within sixty days from the date of the service of notice of the application to such person.]

14. Plain reading of Section 125 Cr.PC suggests that wife, who is unable to maintain herself, legitimate/illegitimate minor child, who are unable to maintain themselves, are entitled to maintenance allowance in terms of Section 125

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Cr.PC. But in the present facts and circumstances, the moot question requires consideration is, as has been discussed .

herein above, whether the petitioner can be termed as "legally wedded wife" of the respondent in the facts and circumstances of the present case or not? Admittedly in the present case, respondent has disputed the very status of of "wife" as being claimed by the petitioner by bringing on record fact with regard to the subsistence of previous marriage of the petitioner i.e. in the Year, 1983. There is no doubt that petitioner has been cohabitating with the respondent for almost 25 years but, especially, in view of the fact that petitioner was married to Mast Ram in 1983 and he was alive till 1995, petitioner cannot claim to be legally wedded wife of the respondent, especially when earlier marriage was in subsistence. It stands proved on record that previous husband was alive till year, 1995.

15. The Hon'ble Apex Court while interpreting the expression "wife" especially while dealing with the case under Section 125 of the Code has held that the word 'wife' used under Section 125 Cr.PC of the Code should be

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interpreted to mean only "legally wedded wife". Careful reading of the Section 125 Cr.PC suggests that wife means .

legally wedded wife because while providing provision under Section 125 Cr.PC, interest of wife who intends to take benefit under Sub Section 125 (1) (a), has been specifically protected. Whosoever intends to take benefit of this provision of necessarily needs to establish that she is the wife of the person concerned, meaning thereby, same can be decided only by referring to the law applicable to the parties. As per Hindu Customs and law, marriage of woman in accordance with Hindu Rites, can be termed as legally wedded wife. The meaning of 'wife' strictly in terms of Section 125 (1)(a) has been defined by the Hon'ble Apex Court in the case titled Yamuna Yamunabai Anantrao Adhav v. Anantrao Shivram Adhav and Anr. (1988) 1 SCC 530 wherein the Hon'ble Apex Court, has held that "Section 125 Cr.PC has been enacted in the interest of a wife, and one who intends to take benefit of the said Section has to establish the necessary condition, namely, that she is the wife of the person concerned." Vide aforesaid judgment, it has further been held that Hindu woman, who gets

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married, after coming into force of the Hindu Marriage Act, 1955, in accordance with Hindu Rites with Hindu male having .

a living spouse was not entitled to maintenance under Section 125 Cr.PC as such marriage is void under Section 11 of the Act. The relevant paragraphs are as below:

"3. For appreciating the status of a Hindu woman of marrying a Hindu male with a living spouse some of the provisions of the Hindu Marriage Act, 1955 (hereinafter referred to as the Act) have to be re-examined. Section 11 of the Act declares such a marriage as null and void in the following terms:

11. Void marriages-Any marriage solemnized after the commencement of this Act shall be null and void and may, on a petition presented by either party thereto against the other party, be so declared by a decree of nullity if it contravenes any one of the conditions specified in clauses (i), (iv) and (v) of Section 5. "

Clause (1)(i) of Section 5 lays down, for a lawful marriage, the necessary condition that neither party should have a spouse living at the time of the marriage. A marriage in contravention of this condition, therefore, is null and void. It was urged on behalf of the appellant that a marriage should not

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be treated as void because such a marriage was earlier recognised in law and custom. A reference was made to Section 12 of the Act and it was said .

that in any event the marriage would be voidable.

There is no merit in this contention. By reason of the overriding effect of the Act as mentioned in Section 4, no aid can be taken of the earlier Hindu Law or any custom or usage as a part of that Law if inconsistent with any provision of the Act. So far as Section 12 is concerned, it is confined to other categories of marriage and is not applicable to one solemnised in violation of Section 5(1)(i) of the Act. Sub-section (2) of Section 12 puts further restrictions on such a right. The cases covered by this section are not void ab initio, and unless all the conditions mentioned therein are fulfilled and the aggrieved party exercises the right to avoid it, the same continues to be effective. The marriages covered by Section 11 are void-ipso-jure, that is, void from the very inception, and have to be ignored as not existing in law at all if and when such a question arises. Although the section permits a formal declaration to be made on the presentation of a petition, it is not essential to obtain in advance such a formal declaration from a court in a proceeding specifically commenced for the purpose. The provisions of Section 16, which is quoted below, also throw light on this aspect:

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" 16. Legitimacy of children of void and voidable marriages.-(1) Notwithstanding that a marriage is null and void under Section 11, .

any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 of (68 of 1976), and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this rt Act.

(2) Where a decree of nullity is granted in respect of a voidable marriage under Section 12, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties of the marriage if at the date of the decree it had been dissolved instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity.

(3) Nothing contained in sub-section (1) or sub section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under Section 12, any rights in or to the property of any person, other than the parents, in any case where, but for the

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passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the .

legitimate child of his parents.

(Emphasis added).

Sub-section (1), by using the words underlined above clearly, implies that a void marriage can be held to be so without a prior formal declaration by a of court in a proceeding. While dealing with cases covered by Section 12, sub- section (2) refers to a decree of nullity as an essential condition and sub- rt section (3) prominently brings out the basic difference in the character of void and voidable marriages as covered respectively by Section 11 and 12. It is also to be seen that while the legislature has considered it advisable to uphold the legitimacy of the paternity of a child born out of a void marriage, it has not extended a similar protection in respect of the mother of the child. The marriage of the appellant must, therefore, be treated as null and void from its very inception.

4. The question, then arises as to whether the expression 'wife used in Section 125 of the Code should be interpreted to mean only a legally wedded wife not covered by Section 11 of the Act. The word is not defined in the Code except indicating in the Explanation its inclusive character so as to cover a divorcee. A woman cannot be a

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divorcee unless there was a marriage in the eye of law preceding that status. The expression must, therefore, be given the meaning in which it is .

understood in law applicable to the parties, subject to the Explanation (b), which is not relevant in the present context.

6. The attempt to exclude altogether the personal law applicable to the parties from of consideration also has to be repelled. The section has been enacted in the interest of a wife, and one who intends to take benefit under sub-section (1)(a) it has to establish the necessary condition, namely, that she is the wife of the person concerned. This issue can be decided only by a reference to the law applicable to the parties. It is only where an applicant establishes her status on relationship with reference to the personal law that an application for maintenance can be maintained. Once the right under the section is established by proof of necessary conditions mentioned therein, it cannot be defeated by further reference to the personal law. The issue whether the section is attracted or not cannot be answered except by the reference to the appropriate law governing the parties. In our view the judgment in Shah Bano's case does not help the appellant. It may be observed that for the purpose of extending the benefit of the section to a divorced woman and an illegitimate child the Parliament considered it necessary to include in the

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section specific provisions to that effect, but has not done so with respect to women not lawfully married."

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16. The Hon'ble Apex Court in Savitaben Somabhai Bhatiya v. State of Gujarat and Ors., (2005) 3 SCC 636, again reiterated the view taken in case referred supra. Paras No. 15 of to 17 as reproduced as below:-

"15. In Smt. Yamunabai's case (supra), it was held that expression 'wife' used in Section 125 of the rt Code should be interpreted to mean only a legally wedded wife. The word 'wife' is not defined in the Code except indicating in the Explanation to Section 125 its inclusive character so as to cover a divorcee. A woman cannot be a divorcee unless there was a marriage in the eye of law preceding that status. The expression must therefore be given the meaning in which it is understood in law applicable to the parties. The marriage of a woman in accordance with the Hindu

rites with a man having a living spouse is a complete nullity in the eye of law and she is therefore not entitled to the benefit of Section 125 of the Code or the Hindu Marriage Act, 1955 (in short the 'Marriage Act'). Marriage with person having living spouse is null and void and not voidable. However, the attempt to exclude altogether the personal law applicable to

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the parties from consideration is improper. Section 125 of the Code has been enacted in the interest of a wife and one who intends to take benefit under .

sub- section (1)(a) has to establish the necessary condition, namely, that she is the wife of the person concerned. The issue can be decided only by a reference to the law applicable to the parties. It is only where an applicant establishes such status or of relationship with reference to the personal law that an application for maintenance can be maintained. Once the right under the provision in rt Section 125 of the Code is established by proof of necessary conditions mentioned therein, it cannot be defeated by further reference to the personal law. The issue whether the Section is attracted or not cannot be answered except by reference to the appropriate law governing the parties.

16. But it does not further the case of the appellant in the instant case. Even if it is accepted as stated by learned counsel for the appellant that husband was treating her as his wife it is really inconsequential. It is the intention of the legislature which is relevant and not the attitude of the party.

17. In Smt. Yamunabai's case (supra) plea similar to the one advanced in the present case that the appellant was not informed about the respondent's earlier marriage when she married him was held to be of no avail. The principle of estoppel cannot be

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pressed into service to defeat the provision of Section 125 of the Code.

17. From the reading of the aforesaid judgment .

rendered by the Hon'ble Apex Court, one thing clearly emerges that to have/claim maintenance under Section 125 of Code, petitioner necessarily needs to prove that she is a legally wedded wife of the respondent. The Hon'ble Apex of Court while dealing with Sections 5 and 11 of the Hindu Marriage Act, 1955 in the case titled Bhogadi Kannababu rt and others v. Vuggina Pydamma and Ors., 2006 SCC 532 observed in para 4 as under:-

14. Section 5 of the Act clearly states the grounds when the marriage cannot be solemnized. Clause (i) of Section 5 is one such condition, which clearly provides that

no marriage can be performed if there is a living spouse. Therefore, in view of Section 5, the marriage between Suryanarayana and Pydamma cannot be considered to be legal as at the time of such marriage, Chilakamma was very much alive. Section 11 of the Act, which deals with a void marriage says that any marriage solemnized after the commencement of this Act shall be null and void if it contravenes any of the conditions specified in Clause (i), (iv) and (v) of Section 5 of the Act. Therefore, in view of Sections 5 and 11 of the

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Act, it must be held that the marriage between Suryanarayana and Pydamma is a void marriage as the said marriage was admittedly solemnized after .

the commencement of the Act. Therefore, considering that the marriage between Suryanarayana and Pydamma was a void marriage, the question that would now arise is whether their daughters, namely, respondents 2 and 3 were of entitled to inherit the properties in question, with the first wife, Chilakamma, on the death of Suryanarayana. In this connection, we may refer to rt Section 16 of the Act. Section 16 of the Act deals with legitimacy of children of void and voidable marriages. Sub-section (1) of Section 16 of the Act clearly says that notwithstanding that the marriage is null and void under section 11, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate.

(Emphasis supplied). Therefore, in view of section 16, it is clear that the daughters, namely, respondents 2 and 3 inherited the properties in question, along with Chilakamma, on Suryanarayana's death.

Accordingly, the High Court was justified in holding that on the death of Suryanarayana, the properties in question were inherited by his daughters, namely, respondents 2 and 3, along with Chilakamma and therefore were entitled to evict the appellants from the properties in question along with Pydamma. Accordingly, the findings of the High Court on the

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question whether respondents 2 and 3 were entitled to inherit the properties in question of late Suryanarayana jointly with Chilakkama cannot be .

interfered with. That apart, in an application for eviction under the A.P.Tenancy Act in which prayer for grant of eviction of a lessee was made, it would not be necessary to decide that the daughters, respondent Nos. 2 and 3 comprehensively had to of prove that on the death of Suryanarayana and Chilakamma, they were entitled to inherit the properties in question in the eviction proceedings. rt Therefore, it is not necessary to finally adjudicate upon the question of right, title and interest of the daughters with respect to the properties in question, which may be done in a comprehensive suit for title.

18. Section 5 of the Hindu Marriage Act, 1955 clearly provides that no marriage can be performed, if there is living spouse. In the present case, undisputedly, petitioner was married to Mast Ram in 1983 who was alive till 1995 and there is no document worth the name to suggest that petitioner had ever taken any divorce from Mast Ram, meaning thereby, that when she started residing with respondent i.e. in the year 1987, her earlier marriage was in subsistence and as such, in no manner, she can be termed as a legally wedded wife of the respondent.

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19. Facts narrated hereinabove as well as law cited above, leaves no scope to interpret the expression "wife" in .

any other way save and except "legally wedded wife."

20. The Hon'ble Apex Court while dealing with the provisions of Section 125 Cr.PC has gone to the extent of observing in Savitaben Somabhai Bhatiya v. State of Gujarat and Ors., (2005) 3 SCC 636 that "Even if it is accepted as stated by learned counsel for the appellant that husband was treating her as his wife it is really inconsequential. It is the intention of the legislature which is relevant and not the attitude of the party."

21. While dealing with the case under Protection of Women from Domestic Violence Act, 2005, The Hon'ble Apex Court in D Velusamy v. D. Patchaiammal, (2010) 10 SCC 469, with regard to the entitlement of wife for maintenance, has held as under :

10. It may be noted that Section 125 Cr.P.C.

provides for giving maintenance to the wife and some other relatives. The word 'wife' has been defined in Explanation (b) to Section 125(1) of the Cr.P.C. as follows :

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"(b) Wife includes a woman who has been divorced by, or has obtained a divorce from, her husband and has not remarried."

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11. In Vimala vs. Veeraswamy, a three- Judge Bench of this Court held that Section 125 of the Code of 1973 is meant to achieve a social purpose and the object is to prevent vagrancy and destitution. Explaining the meaning of the word 'wife' the Court held: (SCC p.378, para3) "3..the object is to prevent vagrancy and destitution. It provides a speedy remedy for the supply of food, clothing and shelter to the deserted wife. When an attempt is made by the husband to negative the claim of the neglected wife depicting her as a kept-

mistress on the specious plea that he was already married, the court would insist on strict proof of the earlier marriage. The term 'wife' in Section 125 of the Code of Criminal Procedure, includes a woman who has been divorced by a husband or who has obtained a divorce from her husband and has not remarried. The woman not having the legal status of a wife is thus brought within the inclusive definition of the term 'wife' consistent with the objective. However, under the law a second wife whose marriage is void on account of the survival of the first marriage is

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not a legally wedded wife, and is, therefore, not entitled to maintenance under this provision."

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12. In a subsequent decision of this Court in *Savitaben Somabhat Bhatiya vs. State of Gujarat and others*, this Court held that however desirable it may be to take note of the plight of an unfortunate woman, who unwittingly enters into wedlock with a married man, there is no scope to include a woman not lawfully married within the expression of 'wife'. The Bench held that this inadequacy in law can be amended only by the Legislature.

22. On the other hand, Mr. Anand Sharma, counsel representing the petitioner stated that it stands proved on record that petitioner had been residing with the respondent for more than 25 years and during this period, they had developed physical relationship and she had given birth to four kids and as such respondent is liable to maintain her as his wife. But as has been observed above, petitioner has not placed on record any evidence to suggest anything, which could compel this Court to infer that she is the legally wedded wife of the respondent strictly in terms of Section 125 Cr.PC, which would have made her entitled to have maintenance allowance. In support of this contention, Mr.

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Sharma placed reliance on *Badri Prasad v. Dy. Director of Consolidation and Ors*, AIR 1978 SC 1557, *D.Velusamy v.*

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D.Patchaiammal, AIR 2011 SC 479 and in *Indra Sarma v. V.K.V. Sarma*, AIR 2014 SC 309. Perusal of the aforesaid judgments, as has been relied upon by Mr. Anand Sharma, in support of his contention clearly suggests that if a man and woman living of as husband wife for about 15 years or more, there is strong presumption that there is wedlock. There cannot be any dispute with regard to the aforesaid observations returned by the judgments to the effect that since petitioner has been cohabiting with the respondent for a long time, a presumption can be drawn that there is a wedlock. But in the present case, when a maintenance is being claimed under Section 125 Cr.PC, aforesaid proposition may not be of any help to the petitioner, especially, in the law laid down by the Hon'ble Apex Court in *Yamuna Yamunabai Anantrao Adhav v. Anantrao Shivram Adhav and Anr.* (1988) 1 SCC 530 whereby, it has been specifically held that expression 'wife' used in Section 125 Cr.PC,

should be interpreted to mean only a legally wedded wife. Though, it stands proved in the

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present case that petitioner has been residing with the respondent for last more than 25 years and gave birth to four .

kids, who are admittedly born out of the lions of the respondent but in the facts and circumstances of the case, petitioner has miserably failed to prove that she is a legally wedded wife of the respondent. Hence, she cannot be held of entitled to maintenance in terms of Section 125 Cr.PC. In the present case, respondent has been successful in proving that rt the petitioner is not a legally wedded wife of the respondent as earlier marriage was in subsistence in year 1987, when as per her own version, she-petitioner had actually started living with the respondent. It is also proved on record that Mast Ram husband of the petitioner was alive till 1995 which undisputed fact persuaded this Court to take a view that the present petitioner cannot be termed as legally wedded wife of the respondent, which is a strict requirement of Section 125 Cr.PC as has been held by the Hon'ble Apex Court in the case Supra. Admittedly, in the present case, children born out of the relations of the respondent petitioner, are entitled to maintenance in terms of Section 125 Cr.PC (1)(b) but it has

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been informed by the counsel for the respondent that they are all major and well settled. Moreover, there is no whisper .

with regard to any maintenance, if any, being claimed by those children along with the petitioner.

23. In view of the aforesaid discussion, this court sees no illegality and infirmity in the order passed by the of Court of learned Sessions Judge whereby he has set-aside the order passed by Sub-Divisional Magistrate and rt accordingly, same is upheld. Present petition is dismissed being void of any merit.

May 07, 2016
manjit

(Sandeep Sharma),
Judge.